# APPENDIX A(II) TO SPECIAL CONDITIONS OF TENDER

## Letter of Undertaking
## (For incorporated joint ventures)
## (Clause SCT 5 of Special Conditions of Tender)

To : The Government of the Hong Kong Special Administrative Region ("The *Client*")
From : [ ]
Date : [ ]

Dear Sirs

**Letter of Undertaking**
**Joint Venture Guarantee for**

**Contract No.: HY/2022/14**
**Modification Works of Noise Barriers along Yuen Long Highway near Park Signature**

We refer to the tender ("the tender") submitted to you by [ ] ("the tenderer"), for the above contract.

In consideration of your agreeing to consider the tender we hereby irrevocably and unconditionally undertake to duly execute and provide to you the joint venture guarantee in the form as set out in Appendix G to the *additional conditions of contract* within 14 days of your letter of acceptance of the tender (if the tender is indeed accepted by you).

We hereby irrevocably and unconditionally agree to indemnify you against all losses, damages, costs and expenses you may incur or suffer as a result of our failing to abide by our above undertaking. We agree that we shall be jointly and severally liable for our obligations under this undertaking and all references to "we" shall take effect as references to all of us or any of us and the words "us" and "our" shall be construed accordingly.

We hereby represent that, with respect to our obligations, liabilities or any other matter under or arising out of or in connection with this letter of undertaking, neither we nor any of our properties or assets have, in the Hong Kong Special Administrative Region, or in any other jurisdiction, any right of immunity on the grounds of sovereignty or otherwise from any legal action, suit or proceedings; from the giving of relief in any legal action, suit or proceedings; from set-off or counterclaim; from the jurisdiction of any court, in the Hong Kong Special Administrative Region or in any other jurisdiction; from service of process upon us or any agent; from attachment prior to judgment in order to obtain satisfaction thereof; from attachment after judgment or from execution or any other process for the endorsement of any judgment or other legal process in any jurisdiction; and to the extent that we are or become entitled to any immunity as aforesaid, in the Hong Kong Special Administrative Region or in any other jurisdiction with respect to our obligations, liabilities or any other matter under or arising out of or in connection with this letter of undertaking, we hereby and will irrevocably and unconditionally waive and agree not to plead or claim any such immunity. We further consent to the giving of any relief in any legal action, suit or proceeding and to execution and or any other form of process for the enforcement of any judgment against us or our assets.

We acknowledge that we comprise all the shareholders of [name of the tenderer]. This letter of undertaking shall be applicable whether the tender accepted by you comprises the conforming or any alternative tender or with any amendments modification or change thereto agreed between the tenderer and yourself.

We hereby further undertake not to make any changes to the percentage participation of each shareholder and the portion of the *works* for which each shareholder is responsible as submitted in the tender. If changes are necessary for the reasons stated in the above contract, we undertake to notify and to obtain prior written consent from the *Client* in accordance with the above contract before these changes are made.

This letter of undertaking shall be governed by and construed in accordance with the laws for the time being in force in the Hong Kong Special Administrative Region and we hereby submit to the non-exclusive jurisdiction of the courts of the Hong Kong Special Administrative Region and irrevocably appoint the tenderer to act as our duly appointed agent for the service of process at the address shown in the tender.

IN WITNESS WHEREOF this Undertaking has been executed as a deed by the shareholders of the tenderer on the date first above written.

**(a)** ***Alternative A (with Common Seal)***[1]

Executed and delivered )
as a deed and the COMMON SEAL )
of [name of *Contractor*] )
was affixed in the presence of )
[ ] its [director(s) or )
director and secretary or person(s) authorized to )
sign the contract by its board of directors][2] )
in the presence of a witness: )
)
…….. )
[Name] )
[Occupation] )
[Address] )

*[Signature of the director(s) etc]*[1]

Common Seal

***Alternative B (without a Common seal)***[1]

Executed and delivered )
as a deed )
by [name of Contractor] )
acting through )
[ ] (its sole director) )
*or* )
[ ] and [ ] (its directors) )
*or* )
[ ] (its director) and )
[ ] (its company secretary)[2] )
in the presence of a witness: )
)
…….. )
[Name] )
[Occupation] )
[Address] )

*[Signature of the director(s) etc]*[1]

Note: (a) For use where executed by company incorporated in Hong Kong.
[1] The italic parts are not part of the execution clause. They are for guidance or information only.
[2] Select the correct expression for use. If none is applicable, insert an appropriate expression.